



PAKISTAN ARMY (AMENDMENT) ORDINANCE, 2009.

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PAKISTAN ARMY (AMENDMENT) ORDINANCE, 2009.

ORDINANCE NO. LII OF 2009

An Ordinance further to amend ,the Pakistan Army Act, 1952

WHEREAS it is expedient further to amend the Pakistan Army Act, 1952 (XXXIX of 1952);

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

Now, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.— (1) This Ordinance may be called the Pakistan Army (Amendment) Ordinance, 2009.

(2) It shall come into force at once and shall be deemed to have taken effect on the 10th November, 2007.

2. Amendment of Section 2, Act XXXIX of 1952.—In the Pakistan Army Act, 1952 (XXXIX of 1952), in section 2, in sub-section (1), in clause (d), in sub-clause (ii), for the semi-colon at the end a comma and the word ",or" shall be substituted and after sub-clause (ii) amended as aforesaid, the following new sub-clause shall be inserted, namely:—

“(iia) any offence, if committed in relation to defence or security of Pakistan or any part thereof or Armed Forces of Pakistan, punishable under the Explosive Substances Act, 1908 (VI of 1908), prejudicial conduct under the Security of Pakistan Act, 1952 (XXXV of 1952), the Pakistan Arms Ordinance, 1965, (W.P.Ord. XX of 1965), the Prevention of Anti-national Activities Act, 1974 (VII of 1974) or Anti-terrorism Act, 1997 (XXVII of 1997), sections 109,117,120B,121, 121-A, 122, 123, 123A,124, 124-A,I48,302, 353 and 505 of the Pakistan Penal Code, or attempt of the aforesaid offences.”.
